

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0002210

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: LESTER PETRACCA

vs.

DEFENDANT: ELIZABETH THIERIOT,
ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: DECLARE DEFENDANT A
VEXATIOUS LITIGANT

RULING

Plaintiff Lester Petracca (“Plaintiff”) filed a Motion seeking to 1) Declare Defendant Elisabeth Thieriot (“Defendant”) a Vexatious Litigant; 2) Issue a Prefiling Order Prohibiting New Litigation; and 3) Issue an Order Compelling Compliance with the Court’s November 14, 2025, Order. The motion is GRANTED in its entirety.

DEFECTS IN THE OPPOSITION/REQUEST FOR LEAVE TO RESPOND

The Opposition violates the 15-page limit for responding memoranda under California Rules of Court, rule 3.1113(d). The memorandum in opposition is subject to the same page limits as the moving memorandum, in that it may not exceed 15 pages. Rule 3.113(d). Defendant’s overlength opposition violates California Rules of Court, rule 3.1113(d); the Court considers only the first 15 pages and DISREGARDS the excess. If the memorandum exceeds the page limit and the party has not obtained permission from the court to file a longer one, the memorandum will be deemed to have been filed late at the time of filing and can be struck from the file. Rule 3.113(g). It would be unfair to permit one party to have more say on any issue than the other.

Defendant’s Request for Leave to Respond is DENIED.

LEGAL STANDARD

The legislature enacted the vexatious litigant statutes (Code of Civil Procedure §§ 391–391.8) to curb misuse of the court system by self-represented litigants who repeatedly file baseless lawsuits or attempt to relitigate issues that were previously determined against them, and who thereby waste the time and resources of the court system and other litigants. (*Shalant v Girardi* (2011) 51 Cal.4th 1164, 1169; *Colombo v Kinkle, Rodiger & Spriggs* (2019) 35 Cal.App.5th 407,

419.) These statutes are constitutional and do not deprive vexatious litigants of due process of law. (*Fink v Shemtov* (2010) 180 Cal.App.4th 1160, 1170.)

A trial court exercises its discretion in determining whether a person is a vexatious litigant. (*Id.*, at p. 1169.) The critical finding to determine whether a litigant is vexatious is whether the litigant's actions are unreasonably impacting the objects of the actions and the courts, as contemplated by the vexatious litigant statute. (*In re Kinney* (2011) 201 Cal.App.4th 951, 957, 958.) The litigant “becomes a serious problem to others than the defendant he dogs. By clogging court calendars, he causes real detriment to those who have legitimate controversies to be determined and to the taxpayers who must provide the courts.” (*Taliaferro v. Hoogs* (1965) 237 Cal.App.2d 73, 74.)

Pursuant to Code of Civil Procedure section 391.7, a court may also, on motion of any party or on its own motion, enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of the state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. (Code Civ. Proc., § 391.7, subd. (a).)

DISCUSSION

In this case, Plaintiff has filed a Motion asserting Defendant is a vexatious litigant under Code of Civil Procedure section 391, subdivision (b)(3). That subdivision provides: “When the person, in any litigation, while acting as a self-represented litigant: (1) repeatedly files unmeritorious motions, pleadings, or other papers; (2) conducts unnecessary discovery; or (3) engages in other tactics that are frivolous or solely intended to cause unnecessary delay.”

In support of the Motion, Plaintiff contends that on June 10, 2026, just five days after the Court denied Ms. Thieriot’s various motions to vacate the default and default judgment—she filed yet another “Motion for Relief from Void Judgment,” seeking the same relief the Court had just denied. (Haevernick Reply Decl., ¶ 5.) On July 17, 2026, this Court issued a tentative ruling striking Ms. Thieriot’s June 10, 2026 motion and denying relief, finding that Ms. Thieriot “seeks the same relief” already denied by the Court’s June 5, 2026 order, that the filing “merely rehashes the same ‘void judgment’ and ‘lack of jurisdiction’ theories this Court has already rejected,” that it violated the Court’s November 14, 2025 order prohibiting further filings, was untimely under Code of Civil Procedure section 1005(b), and exceeded the 15-page limit after Ms. Thieriot had already filed approximately 60 pages of briefing in support of her various motions to vacate. (*Id.*, ¶ 5, Ex. 1A.) Indeed, as previously stated by this court in its prior orders, filings by the Defendant tend to be “voluminous”.

On June 15, 2026, Ms. Thieriot then filed a special proceeding against Mr. Petracca in the Supreme Court of the State of New York, Nassau County (*Elisabeth L. Thieriot v. Lester Petracca and Tracy Petracca*; Index No. 609660/2026) (the “New York Action”). (Haevernick Reply Decl., ¶ 6, Ex. 1B.) The claims she asserts in the New York Action are essentially recycled arguments that were already rejected by this Court—including theories that she discharged the debt through “lawful money” tenders and that the promissory note extinguished all prior security interests. (*Id.*) Mr. Petracca filed a motion to dismiss the New York Action citing *res judicata*, collateral estoppel, full faith and credit, and failure to state a claim. (*Id.*, Ex. C.)

On July 30, 2026, Ms. Thieriot then filed a 14-page “Notice of the Mandatory, Non-Discretionary Removal of Void Judicial Acts, Including Orders, Sanctions, Defaults, Judgments, Liens, the Striking of Derivative Motions, and All Other Derivative Judicial Acts.” (*Id.*, ¶ 7, Ex. 1C.) This filing once again recycles the same theories previously advanced by Ms. Thieriot. In it, Ms. Thieriot demands the “mandatory removal” of every order entered in this case. (*Id.*, Ex. D.) On August 24, 2026, Ms. Thieriot filed yet another paper titled “Notice to the Clerk Regarding Recognition of Judicial and Ministerial Authority.” (*Id.*, ¶ 8, Ex. 1D.) The Notice states that she recognizes a judicial officer’s authority only to the extent the officer acts within lawful jurisdiction and otherwise recognizes the officer only in a ministerial capacity. (*Id.*)

On this record, this case is hotly contested due to, in large part, the conduct of the Defendant. Honorable Judge Andrew Sweet, on November 20, 2025, directed the clerk to enter default against the Defendant, and instructed the clerk's office to not accept any more filings from her, aside from a motion to set aside the default. Moreover, on February 13, 2026, this court ruled that Defendant’s filing titled “Supplemental Notice of Record Clarification” on February was inappropriate and it was struck from the record as it violated the Court’s prior order.

These repeated filings violate the court’s November 14, 2025, order, directing the court from accepting filings from the defendant.

Under Code of Civil Procedure section 391(b)(3), the relevant inquiry is whether the filing is “unmeritorious,” i.e., that it has “no reasonable probability of success.” (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 972.) Multiple requests for the same relief and repeated attempts to relitigate the same issues “create[] an unmeritoriousness” warranting the vexatious litigant designation. (*Golin v. Allenby* (2010) 190 Cal.App.4th 616, 632.) Here, Ms. Thieriot continues recycling the same handful of discredited theories, and the Court has previously characterized her filings as “incessant meritless nonsense.” (Haevernick Decl., ¶ 27, Ex. G at p. 2.)

There is no questions that Ms. Thieriot’s conduct in this action satisfies Code of Civil Procedure section 391, subdivision (b)(3)’s requirements. The Court therefore GRANTS the request to declare Ms. Thieriot a vexatious litigant.

After such a determination, the Court will incorporate this order as a prefiling order that prohibits the litigant from filing any new litigation in a California court as a self-represented litigant without first obtaining permission from the presiding judge of the court in which the litigant proposes to file the litigation. (Code Civ. Proc., § 391.7(a).) This remedy is directed at precluding a vexatious litigant from initiating meritless litigation and the costs associated with defending that litigation. It also affords protection to defendants named in pleadings not yet filed with the court.

Defendant’s history of repeatedly submitting legal filings which are unmeritorious, frivolous, or solely intended for delay, amply proves the need for a pre-filing order. The Motion is GRANTED. (Code Civ. Proc., § 391.7(a).)

The Court declares Defendant a vexatious litigant and enters a prefiling order under section 391.7(a).

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

IT IS ORDERED Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.

FURTHER ORDERED Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003098

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: BARCLAYS BANK
DELAWARE

vs.

DEFENDANT: DAVID MORALES

NATURE OF PROCEEDINGS: MOTION – AMEND

RULING

Plaintiff filed a Motion to correct a clerical mistake made by the bank in which the Plaintiff failed to add an additional service charge of \$71.02, to the total judgment. The judgment was entered almost 2 years ago on or about December 13, 2024.

Plaintiff's motion to correct the judgment to add a \$71.02 service charge is DENIED.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

***FURTHER ORDERED* Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).**